

[26 GEO. 5. &
1 EDW. 8.]

*South Suburban Gas
Act, 1936.*

[Ch. cvi.]



CHAPTER cvi.

An Act to confer further powers upon the South Suburban Gas Company and for other purposes. A.D. 1936.
[31st July 1936.]

WHEREAS the South Suburban Gas Company (hereinafter referred to as "the Company") were originally incorporated by the Crystal Palace District Gas Company's Act 1858 by the name of the Crystal Palace District Gas Company: 21 & 22 Vict. c. cxxix.

And whereas the Acts relating to the Company were consolidated by the South Suburban Gas Act 1928 and under that Act and subsequent Acts the Company are supplying gas in an area of supply which comprises parts of the counties of London Kent and Surrey: 18 & 19 Geo. 5. c. lxxx.

And whereas it is expedient to authorise the Company to use additional lands for the storage of gas:

And whereas it is expedient that the other powers and provisions contained in this Act should be granted and made:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons

A.D. 1936. — in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1.—(1) This Act may be cited as the South Suburban Gas Act 1936.

(2) The South Suburban Gas Acts 1928 to 1935 and this Act may be cited together as the South Suburban Gas Acts 1928 to 1936.

Incorporation of
general
Acts.

2. The following Acts and parts of Acts so far as the same are applicable to the purposes of and are not inconsistent with the provisions of the South Suburban Gas Acts 1928 to 1936 are hereby incorporated with this Act (namely) :—

8 & 9 Vict.
c. 16.

The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital); and

10 & 11 Vict.
c. 15.
34 & 35 Vict.
c. 41.
24 & 25 Geo. 5.
c. 28.

The Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 as respectively amended by the Gas Undertakings Act 1934.

Interpre-
tation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Gas Undertakings Acts 1920 to 1934 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

“The Company” means the South Suburban Gas Company;

“The undertaking” means the undertaking of the Company for the time being authorised;

“Limits of supply” means the limits within which the Company are for the time being authorised to supply gas;

“The directors” means the directors of the Company;

“Gas consumer” means any consumer of gas supplied by the Company within the limits of supply;

“Employee” means any workman servant or officer employed by the Company in connection with the undertaking but does not include a director other than a managing director;

[26 GEO. 5. &
1 EDW. 8.]

*South Suburban Gas
Act, 1936.*

[Ch. cvi.]

“ The Act of 1928 ” means the South Suburban A.D. 1936.
Gas Act 1928; —

“ The Act of 1935 ” means the South Suburban 25 & 26 Geo. 5
Gas Act 1935. c. lxxxv.

4. Subject to the provisions of the Gasworks Lands for
Clauses Acts 1847 and 1871 as incorporated with this storage of
Act the Company may upon the lands described in gas.
the schedule to this Act erect maintain alter improve
and renew gas holders with all necessary machinery
and apparatus and do all such acts as may be proper
for the storage of gas.

5. Notwithstanding anything contained in this or For pro-
in any other Act the Company shall not except with tection of
the consent of the county council of the administrative Kent
county of Kent— County
Council.

(a) erect or make or permit to be erected or made
any building (other than boundary walls gates
posts and fences) or permanent excavation
(other than workings which do not pierce the
surface of the land) on the lands situate
respectively in the parish of Darenth in the
rural district of Dartford in the said county and
in the urban district of Crayford in the said
county and described in the schedule to this
Act nearer to the Dartford-Longfield-Meopham
road or the Bourne road respectively than
the building lines respectively shown on the
plans of the said lands respectively signed by
Tom Brown on behalf of the Company and
by Francis William Greig on behalf of the
said county council; or

(b) place or make or permit to be placed or made
any building erection or excavation on the
said lands nearer to the said roads respectively
than the improvement lines respectively
shown on the said plans; or

(c) construct form or lay out any means of access
to or from the said lands from or to the said
roads respectively except in the situations
and of the dimensions shown on the said plans
respectively ;

A.D. 1936.

Provided that nothing in this section shall affect any right of the Company to make any excavation for the purpose of laying making altering maintaining repairing or renewing any main pipe drain work or other apparatus at a depth to be agreed between the Company and the said county council or failing agreement to be determined by an engineer appointed (unless otherwise agreed) by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such determination.

52 & 53 Vict.
c. 49.
24 & 25 Geo. 5.
c. 14.

For pro-
tection of
Orpington
Urban
District
Council.

6. For the protection of the Orpington Urban District Council the following provisions shall apply and have effect (that is to say):—

- (1) No gas holder shall be erected on the land in the urban district of Orpington described in the schedule to this Act exceeding seventy-five feet in height above the mean level of the ground within the periphery of the tank of the said holder and the centre of the said holder shall be as nearly as practicable at the lowest level of the site:
- (2) Before commencing the erection of any holder upon the said land the Company shall for the purpose of providing as far as practicable an efficient screen plant and thereafter (so long as there shall be a gas holder on the said land) maintain a sufficient number of non-deciduous trees and shall as far as practicable leave the existing trees undisturbed and shall paint the said holder with a colour to be approved by the said council.

For pro-
tection of
Dartford
Rural
District
Council and
Governors
of St. Bar-
tholomew's
Hospital.

7. For the protection of the Dartford Rural District Council (in this section referred to as "the council") and the Governors of the House of the Poor commonly called St. Bartholomew's Hospital (in this section referred to as "the governors") the following provisions shall unless otherwise agreed in writing between the council and the governors and the Company apply and have effect with respect to the pieces of land in the rural district of Dartford described in the schedule to this Act (that is to say):—

- (1) No gas holder shall be erected on the said pieces of land of a greater height than seventy-five

[26 GEO. 5. &
1 EDW. 8.]

*South Suburban Gas
Act, 1936.*

[Ch. cvi.]

feet above the mean level of the ground within the periphery of the tank of the said holder :

A.D. 1936.

- (2) Before commencing the erection of any holder upon either of the said pieces of land the Company shall for the purpose of providing as far as practicable an efficient screen plant and thereafter (so long as there shall be a gas holder on the said piece of land) maintain a sufficient number of non-deciduous trees and shall paint the said holder with a colour to be approved by the council and in the case of the piece of land in the parish of Sutton-at-Hone by the governors.

8. For the protection of the Sevenoaks Rural District Council the following provisions shall unless otherwise agreed in writing between the said council and the Company apply and have effect with respect to the pieces of land in the rural district of Sevenoaks described in the schedule to this Act (that is to say) :—

For pro-
tection of
Sevenoaks
Rural
District
Council.

- (1) No gas holder shall be erected—

(a) on the piece of land in the parish of Kemsing of a greater height than seventy-five feet;

(b) on the piece of land in the parish of Shoreham of a greater height than sixty feet;

above the mean level of the ground within the periphery of the tank of the said holder :

- (2) As soon as practicable after the passing of this Act and before commencing the erection of any holder upon either of the said pieces of land the Company shall for the purpose of providing as far as practicable an efficient screen plant and thereafter (so long as there shall be a gas holder on the said piece of land) maintain a sufficient number of non-deciduous trees and shall paint the said holder with a colour to be approved by the said council.

9.—(1) Section 68 (Maintenance and construction of gas works) of the Act of 1928 in so far as the said section authorises the Company to erect and maintain works for the storage of gas on a piece of land described

Repeal of
powers to
erect works
for storage
of gas at

A.D. 1936.
—
Hawley's
Corner
Orpington
and limita-
tion of
powers at
Pratt's
Bottom.

in Part II of the First Schedule to the said Act as being in the parish of Cudham in the rural district of Bromley (now the urban district of Orpington) is hereby repealed.

(2) (a) No gas holder shall be erected on the land described in Part II of the First Schedule to the Act of 1928 as being situate at the northern end of Charm Wood in the parish of Chelsfield in the rural district of Bromley (now the urban district of Orpington) exceeding seventy-five feet in height above the mean level of the ground within the periphery of the tank of the said holder and the centre of the said holder shall be as nearly as practicable at the lowest level of the site.

(b) Before commencing the erection of any holder upon the said land the Company shall for the purpose of providing as far as practicable an efficient screen plant and thereafter (so long as there shall be a gas holder on the said land) maintain a sufficient number of non-deciduous trees and shall as far as practicable leave the existing trees undisturbed and shall paint the said holder with a colour to be approved by the urban district council of Orpington.

Special
provision
for benefit
of small
investors.

10. Notwithstanding anything in any Act relating to the Company the directors may with the approval of a resolution of a general meeting of the Company reserve a proportion not exceeding one-fourth of each future issue of ordinary stock or preference stock of the Company for exclusive offer in the first instance to gas consumers and to employees at such price and upon such terms and conditions as to payment therefor and the payment of dividends thereon until the same become fully paid as the directors may prescribe :

Provided that every allotment of stock under this section shall be at a price as near as may be to but in no case lower than five per centum below the average market price of the like class of stock in the period of twenty-eight days immediately preceding such allotment or if there be no such market price then such a price as shall be determined on the application of the Company by the chairman of the Committee for General Purposes of the London Stock Exchange to be a fair

[26 GEO. 5. &
1 EDW. 8.]

*South Suburban Gas
Act, 1936.*

[Ch. cvi.]

price having regard to the average market price of other stocks of the Company To ascertain the average market price or to determine a fair price of the stock for the purposes of this proviso the mean daily prices recorded in the London Stock Exchange daily official list shall be taken for the said period of twenty-eight days. A.D. 1936.
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11.—(1) The Company may at any time purchase by agreement any debenture stock of the Company at a price not exceeding the market value thereof and for that purpose may apply any moneys for the time being in their hands which they are entitled to apply to capital purposes. Purchase and cancellation of Company's securities.

(2) Any debenture stock purchased under the provisions of this section shall be cancelled.

12.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the capital of the Company paid up or credited as paid up including premiums to a fund to be called "the renewal fund." Renewal fund.

(2) The renewal fund shall be applicable only to meet expenses requisite for the maintenance and renewal of plant and works (other than expenses incurred in the replacement or removal of plant or works) and shall be so applied from time to time for the purposes of equalising so far as may be the annual charge to revenue in respect of such expenses.

(3) The maximum amount standing to the credit of the renewal fund shall not at any time exceed an amount equal to one-twentieth part of the amount for the time being expended by the Company on capital account for the purposes of the undertaking.

13.—(1) Where two or more persons are jointly entitled to or are registered in the books of the Company as the joint holders of any stock of any class or description or any mortgage or debenture stock of the Company the receipt of any of such persons shall (in the event of no notice to the contrary being served upon the Company from the other or others of such persons) be a sufficient discharge to the Company Receipts in cases of joint holders &c.

A.D. 1936. — for any dividend interest or other sum of money payable in respect of such stock mortgage or debenture stock the receipt whereof is acknowledged by such receipt.

(2) Section 26 (Receipts for interest in cases of joint holders) of the Act of 1928 is hereby repealed.

Substitution
of card
index for
share-
holders'
address
book.

14. Notwithstanding anything in section 10 of the Companies Clauses Consolidation Act 1845 the Company may substitute for the shareholders' address book provided under that section a card or other index (of a type to be approved by the auditors of the Company) containing the names and addresses of the several stockholders of the Company and that section in its application to the Company shall be read and have effect accordingly.

Several
sums in one
summons.

15. Where the payment of more than one sum by any person is due under the provisions of any Act or Order from time to time relating to the Company any summons or warrant issued for the purposes of that Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all sums payable by him.

Amendment
of section 46
of and Third
Schedule to
Act of 1928.

16. Section 46 (Nominations by employees for transfer of stock held by them) of the Act of 1928 shall be read and have effect as if the word "ordinary" were omitted before "stock" and regulation (1) set forth in the Third Schedule to the said Act shall be read and have effect as if the word "stock" were defined to mean any stock including debenture stock of the Company.

Amendment
of section 22
of Act of
1935.

17. Section 22 (As to streets forming boundary of limits of supply) of the Act of 1935 shall be read and have effect as if the words "abutting upon that street or part of a street and being" in subsection (1) thereof and the words "abutting upon any such street and being" in subsection (2) thereof were omitted therefrom.

Costs of
Act.

18. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may be defrayed wholly or partly out of revenue.

[26 GEO. 5. &
1 EDW. 8.]

*South Suburban Gas
Act, 1936.*

[Ch. cvi.]

The SCHEDULE referred to in the
foregoing Act.

A.D. 1936.

LANDS FOR THE STORAGE OF GAS.

In the county of Kent—

In the rural district of Dartford—

A piece of land containing by admeasurement 2 acres 1 rood and 12 perches or thereabouts situate in the parish of Darenth and forming part of the enclosure numbered in the said parish 64 on the 1/2500 Ordnance map (Kent sheet IX.16 edition of 1933) and comprised within an imaginary line commencing at a point on the western boundary of the road from Dartford to Meopham fifteen feet north of the northern boundary of the enclosure numbered in the said parish 26 thence proceeding in a westerly direction parallel to the said northern boundary for a distance of 256 feet thence proceeding in a northerly direction for a distance of 398 feet 6 inches thence proceeding in an easterly direction for a distance of 255 feet to a point on the western boundary of the said road 384 feet from the point of commencement and thence proceeding along the western boundary of the said road to the point of commencement;

A piece of land containing by admeasurement 5 acres 2 roods and 13 perches or thereabouts situate in the parish of Sutton-at-Hone and being the enclosure numbered in the said parish 81a on the 1/2500 Ordnance map (Kent sheet XVII.1 revision of 1932) adjoining land and premises known as the White Oak Hospital.

In the rural district of Sevenoaks—

A piece of land containing by admeasurement 3 roods and 3 perches or thereabouts situate in the parish of Kemsing and forming part of the enclosure numbered in the said parish 66 on the 1/2500 Ordnance map (Kent sheets XXIX.10 and 14 edition of 1909) bounded on the north-east by the north-eastern boundary of the said enclosure on the south-east by the ditch dividing the said enclosure into two parts on the south-west by an imaginary straight line drawn parallel to and at a distance of 200 feet from the said north-eastern boundary and on the north-west by the south-eastern boundary of premises abutting on Park Lane;

A piece of land containing by admeasurement 1 acre 2 roods and 6 perches or thereabouts situate in the parish of Shoreham and forming part of the enclosure numbered in the said parish 64

A.D. 1936. — on the 1/2500 Ordnance map (Kent sheet XXVIII.4 revision of 1932) and comprised within an imaginary line commencing at a point 105 feet west of the western corner of the enclosure numbered in the said parish 97 on the south side of the footpath skirting the north side of Jenkin's Neck Wood thence proceeding in a south south-westerly direction for a distance of 210 feet thence proceeding at right angles in an east south-easterly direction for a distance of 295 feet thence proceeding in an east north-easterly direction for a distance of 27 feet thence proceeding parallel to the north-western boundary in a north north-easterly direction for a distance of 199 feet to the said footpath thence proceeding along the south side of the said footpath to the point of commencement.

In the urban district of Crayford—

A piece of land containing by admeasurement four and a quarter acres or thereabouts abutting on the south side of Bourne Road and being the enclosure numbered in the said urban district 159 on the 1/2500 Ordnance map (Kent sheet IX.1 edition of 1933).

In the urban district of Orpington—

A piece of land containing by admeasurement 3 acres and 11 perches or thereabouts and forming the enclosures numbered in the parish of Cudham 207a and 210 on the 1/2500 Ordnance map (Kent sheets XXVIII.5 and 6 revision of 1932) except so much of those enclosures as comprises the premises known as "Glencot" and as lies to the north of an imaginary straight line drawn along and in continuation of the northern boundary of the said premises and except so much of the said enclosure numbered 207a as lies to the east of the most easterly point of the said enclosure numbered 210.

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